

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 21-04

Greatway Logistics Group, LLC
Complainant

v.

Ocean Network Express, Pte., Ltd.,
Respondent.

**JOINT MOTION FOR APPROVAL OF SETTLEMENT AGREEMENT, DISMISSAL OF
THE COMPLAINT WITH PREJUDICE AND TREATMENT OF SETTLEMENT
AGREEMENT AS CONFIDENTIAL**

Pursuant to Federal Maritime Commission Rules of Practice and Procedure 72, 91, and 5, 46 C.F.R. §§ 502.72, 502.91, and 502.5, complainant Greatway Logistics Group, LLC (“Greatway”) and respondent Ocean Network Express Pte. Ltd. (“ONE” and collectively with Greatway, “the Parties”) jointly move for: (1) approval of the Full and Final Settlement Agreement and Mutual Release of Claims (the “Settlement Agreement”); (2) dismissal of the Complaint against ONE *with prejudice*; and (3) an order that the Settlement Agreement be held confidentially by the Presiding Officer and the Commission and barred from public view or disclosure. In support thereof, the Parties state as follows:

**I.
Background**

Greatway commenced this proceeding by filing its Complaint on May 28, 2021. On August 4, 2021, the Bureau of Enforcement (“BOE”) was permitted to intervene in this proceeding. Since then, the Parties have engaged in good-faith settlement negotiations in light of the anticipated costs of continued litigation and the uncertainties inherent in the outcome of litigation. BOE was aware of the status of the ongoing settlement discussions between the Parties. On September 20, 2021, the Parties reached a settlement in principle of the dispute.

On November 2, 2021, ONE and Greatway entered into the Settlement Agreement. The Settlement Agreement was negotiated and entered into after good-faith negotiations and with the benefit of legal counsel. The Settlement Agreement is separately filed confidentially as **CONFIDENTIAL EXHIBIT “A.”**

BOE advised the Parties that it does not want to impede the commercial resolution of this private complaint proceeding and that it will not object to the settlement. BOE is not, however, a party to the Settlement Agreement.

II. **Argument and Authorities**

A. The motion to approve the Settlement Agreement and dismiss the complaint with prejudice should be granted.

It is “well settled that the law and Commission policy encourage settlements and engage in every presumption which favors a finding that they are fair, correct, and valid.” *Old Ben Coal Co. v. Sea-Land Service, Inc.*, 18 S.R.R. 1085, 1092 (A.L.J. 1978); *accord American Stevedoring, Inc. v. The Port Authority of New York and New Jersey*, No. 10-05, 2011 WL 7144009, *1 (ALJ Oct. 27, 2011) (Notice Not to Review served Dec. 2, 2011); *Smartstone Private Limited v. General Noli USA, Inc.*, No. 1946(F), 2015 WL 4537579, *2 (A.L.J. July 22, 2015) (same) (Notice Not to Review Served Aug. 24, 2015). The Commission finds settlements especially supportable when the parties are confronted with the prospect of expensive further litigation and uncertainty as to the outcome. *Celanese Corp. v. The Prudential Steamship Co.*, 20 S.R.R. 27, 30 (A.L.J. 1980). This is because, settlement, ““allows the parties to settle their differences, without an admission of a violation of law by the respondent, when both the complainant and respondent have decided that it would be much cheaper to settle on such terms than to seek to prevail after expensive litigation.””

Smartstone, No. 1946(F), 2015 WL 4537579 at *3 (quoting *APM Terminals North America, Inc. v. Port Authority of New York and New Jersey*, 31 S.R.R. 623, 626 (F.M.C. 2009)).

The Settlement Agreement negotiated by Greatway and ONE, with the advice and assistance of their respective counsel, is reasonable and not inconsistent with any law or policy. The Parties carefully considered the costs, benefits, and risks of further litigation, and determined that settlement is in their mutual interests. Similarly, the Settlement Agreement—an agreement between and negotiated by sophisticated business entities—was reached without fraud, duress, undue influence, or any other defect that would bar its approval. Moreover, BOE does not object to the settlement as a commercial resolution of this dispute. Accordingly, the Parties respectfully request that the Settlement Agreement be approved and that all of Greatway’s claims against ONE in the above-captioned proceeding be dismissed *with prejudice*.

B. The Parties request that the Settlement Agreement be treated as confidential.

The Parties further request that the Settlement Agreement be held confidentially by the Commission. The confidentiality of a document is permitted under Commission Rule 5. 46 C.F.R. § 502.5. The Commission, and the courts, routinely honor such requests. *See, e.g., Smartstone*, No. 1946(F), 2015 WL 4537579 at *3; *American Stevedoring*, 2011 WL 7144009 at *2 (quoting *Al Kogan v. World Express Shipping, Transportation and Forwarding Services, Inc.*, No. 00-04, 2000 WL 1920488, *3 n.7 (ALJ Sep. 15, 2000)); *Kawasaki Kisen Kaisha, Ltd. v. Intercontinental Exchange, Inc. and Ignacio Gomez*, 29 S.R.R. 227, 227-29 (ID 2001); *Marine Dynamics v. RTM Line, Ltd.*, 27 S.R.R. 503, 504 (ID, Admin. Final 1996).

Under the terms of the Settlement Agreement, the Parties must keep the terms of the Settlement Agreement confidential. This confidentiality requirement is a material term of the

Settlement Agreement. The Parties therefore respectfully request that the Commission keep the unredacted copy of the Settlement Agreement confidential.

Additionally, because the entire Settlement Agreement is confidential, the Parties have not filed a “public version.” Commission precedent provides that settling parties need not file a public version of a settlement in such circumstances. *Global Link Logistics, Inc. v. Hapag-Lloyd AG*, No. 13-07, 2015 WL 1928868, at *6 (FMC Apr. 14, 2015). Where, as here, the Parties “want to maintain confidentiality of the Settlement Agreement as it contains terms setting out the settlement amount, as well as terms governing the release of all claims related to the controversy involved” and there is no “public interest in disclosure of the settlement amount or the terms of the release of the involved claims, that outweighs the [p]arties’ interest in maintaining the confidentiality of these terms,” the agreement should be held confidentially. *Id.* at *7.

III. **Conclusion**

For the reasons above, Greatway Logistics Group, LLC, and Ocean Network Express Pte. Ltd. respectfully request that: (1) the Presiding Officer approve the Settlement Agreement; (2) that Greatway’s complaint against ONE be dismissed *with prejudice*; and (3) the Settlement Agreement be afforded confidential treatment.

Dated: November 10, 2021.

Respectfully submitted,

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**COUNSEL FOR COMPLAINANT
GREATWAY LOGISTICS GROUP,
LLC**

CERTIFICATE OF CONFERENCE

I certify that counsel for ONE, Greatway, and BOE have conferred regarding the relief sought in this motion multiple times via e-mail between October 4, 2021 and November 9, 2021. ONE and Greatway agree to the requested relief. BOE, as its is not a party to the Settlement Agreement, does not join the motion, but has stated that it does not wish to interfere with a commercial resolution of this matter.

/s/ Andrew R. Nash
Andrew R. Nash

CERTIFICATE OF SERVICE

I certify that on the 10th day of November, 2021, a true and correct copy of the foregoing document was served on all counsel of record in accordance with 46 CFR Part 502.

/s/ Andrew R. Nash
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